

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARIA MUY HIDALGO,

Petitioner

VS.

TEMAR HUNT,

Respondent

) Case Number: FPT-25-378543

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/23/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Maria Muy Hidalgo (Mother) and Respondent Temar Hunt (Father) have two minor children, Avionna (DOB: 7/30/2012) and Theo (DOB: 4/14/2015). Father and the children live in San Francisco; Mother lives in Nevada.
- 2) In an order after trial filed 10/25/2022, the San Joaquin County Superior Court ordered that the parties shall share legal custody of the children and that Father shall have physical custody of the children, with Mother to have parenting time during the holidays and as follows: "Upon 21 days' notice by AppClose Mother may have one weekend a month in California from Sat[urday] at 10am until Sunday at 5pm in any month she does not have a visit as set forth in the holiday schedule." The order provides: "This is a final custody order requiring a change in circumstances to modify."

1 3) On 9/26/2024, the parties stipulated to have venue transferred to San Francisco County. See San
2 Joaquin Superior Court order filed 11/25/2024.

3 4) On 12/10/2025, Mother filed a request for the children to move to Nevada to live with her.
4 Mother noted she made a report to Child Protective Services (CPS) that one of the children was
5 sexually abused while in the paternal grandmother's care. CPS determined there was no sexual
6 abuse and that Mother had coached the child; Mother denied coaching the children. Mother
7 requested a Tier II interview of Avionna for the child to express which parent she would like to
8 live with. Father denied Mother's allegations in his response filed 12/31/2025.

9 5) On 12/31/2025, Father filed an ex parte request asking that Avionna be immediately returned to
10 his care after Mother kept Avionna beyond her custodial time based on Mother's representation
11 that Avionna was refusing to return to Father's care. This Court denied the ex parte request
12 pending a custody and visitation hearing on 3/10/2026.

13 6) After the 3/10/2026 hearing, the Court issued the following orders in the Findings and Order
14 After Hearing filed on 4/3/2026:

- 15 a. The Court finds it is in the children's best interests to maintain the 10/25/2022 final
16 custody orders from San Joaquin County Superior Court for joint legal custody and
17 physical custody to Father, with parenting time as set forth in that order.
- 18 b. Mother's request that the children move to Nevada to live with her is DENIED.
- 19 c. Mother's request for a Tier II interview of Avionna is denied at this time; however, a
20 review hearing is set for 6/23/2026 at 9am in Department 404 to see how parenting time
21 with both parents is going, and to evaluate whether a Tier II interview of either child is
22 appropriate. Both parties shall file and serve update declarations no later than 6/15/2026.

23 7) On 6/15/2026, Mother filed an Update Declaration stating the current custody arrangement is not
24 in the children's best interests because it inadequately supports the children's emotional needs,
25 academic progress, or stability. Mother states Father is uncooperative in both co-parenting and
26 communicating with her. According to Mother, during late May, she observed scars and markings
27 on Avionna's wrists, suggesting signs of self-harm. Mother raised this issue and an additional
28 concern about the children's decline in academic performance. Mother states Father was
29 unresponsive to her attempts to remedy the children's situation, and that Father has delayed

1 setting up therapy for the children. Mother also states Father failed to disclose information about
2 the children's medical appointment, and this lack of communication is harming the parties' ability
3 to conduct meaningful co-parenting.

4 8) Father did not file a Responsive Declaration.

5 **B. Findings and Order**

6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 children is the United States.

10 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 6/23/2026 in**
11 **Department 404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAMONDRE SNOWDEN,

Petitioner

VS.

SHAY-SEAN REED,

Respondent

) Case Number: FMS-17-387037

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/23/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN HOFMEYER,

Petitioner

VS.

GABRIELA HOFMEYER,

Respondent

) Case Number: FDI-18-790640

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TEMPORARY STAY OF PROPERTY SALE/SORT-SALE ACTIVITY;
REQUEST FOR ORDER: DISCLOSURE OF HOMEOWNERS ISURANCE SETTLEMENT
AGREEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner John Hofmeyer (Husband) and Respondent Gabriela Hofmeyer (Wife). The parties married on 11/11/2006. At the prior 4/2/2026 hearing date, the Court made a finding that the parties' date of separation is 8/13/2018, for a marriage of 11 years and 9 months. The parties have one adult child, Lyra (DOB: 9/23/2007, age 18) and one minor child, Bryce (DOB: 4/19/2010, age 16). Husband is self-represented. Wife is represented by attorney Allyson Overton.
- 2) The currently pending Requests for Order concern a condominium located at 245 5th Street, Unit 201, San Francisco, California (hereafter the "5th Street Condominium") that was purchased during the marriage. In 2017, Husband states the parties paid off and closed a Nationwide HELOC. Husband states that after separation, Wife reactivated the previously closed Nationwide HELOC and incurred more than \$90,000 in post-separation debt, secured by the property.

1 Husband states that this post-separation encumbrance is the “primary basis for foreclosure
2 activity and title disputes affecting the property (see Husband’s declaration filed 3/2/2026). In
3 March and April 2019, the condo suffered water damage. It appears undisputed that repairs to the
4 condo have not been completed. Husband states that in December 2024, Wife settled an insurance
5 litigation against Safeco and received a payout of more than \$370,000 without Husband’s input or
6 knowledge. Husband states he did not learn of the settlement payout until April 2025. At the prior
7 8/21/2025 hearing, the Court granted Husband’s request for exclusive use and possession of the
8 condominium. Wife states Husband is currently living in the 5th Street Condominium “mortgage-
9 free while failing to pay HOA fees and other obligations” and that the condominium is
10 encumbered by three separate loans held by two different lenders with an aggregate loan balance
11 that exceeds the current fair market value of the property (see Wife’s declaration filed 2/2/2026).
12 Husband states that a lis pendens has been recorded against the property by one of the debt
13 holders which clouds title. Husband states that in February 2026 he obtained a written estimate
14 from OT Builders in the amount of \$62,800 to repair the property and restore it to a habitable and
15 rentable condition (see Husband’s declaration filed 3/2/2026).

16 3) Prior Relevant Orders

- 17 a. On 1/9/2024, a Stipulation and Order for Short Sale of Community Property Real Estate
18 was filed wherein the parties agreed to immediately execute all documents necessary to
19 apply for a short sale of 5th Street Condominium, provided that a short sale is “approved
20 by the lenders” and provided the parties’ loss mitigation attorney did not object to the
21 Stipulation by 12/4/2023.
- 22 b. At the prior 8/21/2025 hearing (per the Findings and Order After Hearing filed
23 8/26/2025), the Court deferred to Presiding Judge Rochelle East regarding Husband’s
24 request to consolidate the family law case with pending related Case No. CGC-25-
25 623783; declined to “issue financial orders” related to the regarding the 5th Street
26 Condominium (noting “resolution of the civil action must first occur”); and granted
27 Husband’s request for exclusive use and possession of the condo.
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29

- 1 c. At the prior 2/26/2026 hearing, the Court denied Husband's request to set aside and
2 vacate the Stipulation and Order for Short Sale of Community Property Real Estate filed
3 1/9/2024.

4 4) Related Court Cases

- 5 a. An action was previously brought by Wife against Safeco in the Superior Court for the
6 County of Alameda, Case No. RG20061553. This Court does not have access to the
7 pleadings filed in the Alameda County case. Husband attached to his Reply Declaration
8 filed 6/12/2026 a copy of the Complaint and Demand for Jury Trial filed on 5/18/2020 in
9 Alameda County Case No. RG20061553. The complaint names the following causes of
10 action: first cause of action (breach of the implied covenant of good faith and fair dealing
11 against Safeco and Liberty Mutual Insurance Company); second cause of action
12 (negligence against Restoration Management and Defendants 6-10); third cause of action
13 (aiding and abetting against Restoration Management and Defendants 6-10); fourth cause
14 of action (declaratory relief against John Hofmeyer and Defendants 11-15). Regarding
15 the fourth cause of action, the complaint states: "An actual controversy has arisen and
16 now exists between the parties concerning the possession of and use of insurance
17 proceeds that are the subject of this lawsuit, as well as the right to other damages alleged
18 to have been caused by Liberty Mutual. John Hofmeyer's request for an emergency order
19 as it relates to the insurance benefits is itself sufficient and independent grounds to assert
20 the existence of the alleged dispute." The case was settled and dismissed in 2024.
- 21 b. There is an action currently pending in the Superior Court for the County of San
22 Francisco, Case No. CGC-25-623783, brought by Wife's former attorney (Kerley
23 Schaffer LLP) in the Safeco action. The named defendants are U.S. Bank, Tehama Lofts
24 Condominium Homeowner's Association, Nationwide Bank, Professional Insurance
25 Evaluations, John Hofmeyer (Husband), and Gabriela Hofmeyer (Wife). This is an
26 interpleader action involving \$67,031.11 in insurance proceeds that Wife's former law
27 firm, Kerley Schaffer LLP, recovered in the prior insurance lawsuit. Kerley Schaffer LLP
28 deposited the funds with the court and has asked the court to require all competing
29 claimants to litigate among themselves who has rights to the funds. Husband filed a

1 cross-complaint, in which he seeks to trace how the insurance proceeds were handled and
2 distributed, determine whether the funds are separate or community property, identify
3 who received payments, and obtain equitable remedies such as a constructive trust,
4 restitution, and an accounting. There is a future Case Management Conference set in this
5 matter for 9/2/2026.

- 6 c. There is an action currently pending in the Superior Court for the County of San
7 Francisco, Case No. CGC-25-624078 brought by U.S. Bank. The named defendants are
8 Wilmington Savings Fund Society; Clear Recon Corp; Gabriela Hofmeyer (Wife); John
9 Hofmeyer (Husband); and “all persons unknown claiming any legal or equitable title,
10 estate, lien or interest in the subject property described in the complaint adverse to
11 Plaintiff’s title or any cloud on Plaintiff’s title thereto.” Per the Complaint filed 4/4/2025,
12 U.S. Bank is seeking quiet title, cancellation of instruments, equitable subrogation,
13 injunction, and declaratory relief. Regarding quiet title, U.S. Bank asks the Court to
14 “remov[e] encumbrances against the Subject Property that Plaintiff is informed and
15 believes, and thereon alleges, have been paid in full but erroneously not reconveyed.”
16 There is currently a trial scheduled in this case for October 2026.

17 5) Future Hearing Dates

- 18 a. There is currently a status conference set in this case for 7/13/2026.
19 b. There is currently a hearing scheduled for 8/7/2026 in Dept. 405A on Husband’s Request
20 for Order filed 4/30/2026 seeking to compel further responses to his Request for
21 Production of Documents, Set Four and Special Interrogatories, Set Three.

22 6) Husband’s Request for Order filed 3/2/202026

- 23 a. On 3/2/22026, Husband filed a Request for Order asking the Court to make the following
24 orders:
25 i. short-sale activity is stayed through the conclusion of the related civil lien/title
26 proceedings set for October 12, 2026 (and any continued date).
27 ii. During the stay, no party may open escrow, accept an offer, sign a purchase
28 contract, close escrow, or record any deed or instrument transferring any interest
29 in the Property.

1 iii. During the stay, the January 2024 short-sale stipulation shall not be enforced to
2 compel short-sale performance, including the 48-business-hour signing
3 demand/ex-parte signature procedure.

4 iv. The Court's August 26, 2025 exclusive use and possession order remains in
5 effect; no lockbox, no keys surrendered, and Petitioner shall not be required to
6 vacate or surrender possession for sale-related purposes.

7 v. Set a status conference in late October 2026 (first available after 10/12/26) to
8 review civil outcomes, title/insurability, interpleader funds, and dissolution trial
9 setting; if both related civil matters (CGC-25-624078 and CGC-25-623783)
10 resolve earlier, the parties may stipulate to advance the status conference date,
11 subject to Court availability.

12 b. On 4/15/2026, Wife filed a Responsive Declaration asking the Court to deny Husband's
13 requested relief and Wife further requests sanctions in the amount of \$5,000 under
14 Family Code section 271.

15 c. On 4/20/2026, Husband filed a Reply Declaration.

16 d. On 5/20/2026, Husband filed a Supplemental Reply Declaration asking for the following
17 updated relief:

18 i. Apply and reaffirm its August 26, 2025 ruling that the Court will not issue
19 property-related financial determinations until the related civil matters are
20 resolved, including determinations that depend on unresolved encumbrance and
21 value inputs; and

22 ii. Order a brief stay of short-sale activity through June 12, 2026; and

23 iii. Direct that no later than June 12, 2026, Husband shall file and serve a properly
24 noticed request seeking an orderly alternative disposition in which, once the quiet
25 title matter materially resolves the enforceable lien/encumbrance issues and title
26 can be cleared, the Court may award the property to Husband with Husband
27 assuming responsibility for the Property's associated encumbered debt as
28 appropriate.
29

iv. If Husband does not file and serve the noticed request by June 12, 2026, the stay automatically expires on June 12, 2026 absent further order of the Court.

e. On 5/20/2026, Husband filed Evidentiary Objections to Wife's Responsive Declaration and Supporting Papers.

f. On 5/22/2026, Wife filed a Supplemental Declaration Opposing Delay of Home Sale. Wife states that Husband interfered with the prior court-appointed public adjuster's work to repair the home and prepare it for sale and has also interfered with the real estate agent's efforts to sell the home. Wife states that her lawsuit against Safeco arose from Husband's collusion with the insurance company to interfere with the repairs being made. Wife requests \$10,000 in Family Code section 271 attorney's fees sanctions.

g. On 5/26/2026, Husband filed a Rebuttal Declaration. Husband that he "cooperated in short-sale efforts until he learned title was clouded and understood the implications of proceeding with irreversible short-sale steps under a clouded title." Husband asks the Court to give little or no weight to Wife's allegations to the extent they rely on motive / intent accusations, hearsay, or collateral issues, and focus on whether short-sale activity should be paused briefly pending developments in the related civil quiet title matter.

h. On 5/26/2026, Husband filed Evidentiary Objections to Wife's 5/22/2026 Supplemental Declaration and Exhibits.

i. On 5/26/2026, Husband filed a Limited Update and Supplemental Declaration. Husband states, "On Friday afternoon, May 22, 2026, I was served with a filing in the quiet title case (CGC-25-624078) by Defendant Wilmington Savings Fund Society, FSB representing that "a settlement agreement is now pending... whereby the disputed lien will be released." Husband states this indicates the quiet title action is in active settlement posture and may resolve sooner than the October date referenced in my moving declaration. Husband states, "Accordingly, given the very recent posture in the quiet title case, I am narrowing my request to only a brief pause of short-sale activity through June 12, 2026."

- 1 j. On the Court's own motion, the Court continued the 5/28/2026 hearing on Husband's
2 3/2/2026 Request for Order to 6/23/2026, to join the hearing on Husband's Request for
3 Order filed 5/4/2026.

4 7) Husband's Request for Order filed 5/4/2026

- 5 a. On 5/4/2026, Husband filed a Request for Order asking the Court to order Wife to
6 produce:
- 7 i. the final Safeco settlement agreement and release;
 - 8 ii. the request for dismissal, dismissal, and related proof of service documents;
 - 9 iii. any settlement statement or disbursement ledger;
 - 10 iv. copies of settlement checks, endorsements, and deposit records; and
 - 11 v. a verified accounting of all proceeds received, deposited, transferred, withheld, or
12 disbursed in connection with the Safeco claim and related litigation.
- 13 b. On 6/5/2026, Husband filed a Supplemental Declaration stating, "Since filing my moving
14 declaration, U.S. Bank has opened a claim/investigation regarding the \$140,684.79
15 Safeco multi-payee settlement check that names U.S. Bank as a payee..."
- 16 c. On 6/5/2026, Husband filed Updated Requested Orders. Husband asks the Court to make
17 the following orders:
- 18 i. Wife shall produce to Husband the documents and information requested in
19 Husband's Request for Order no later than July 9, 2026, and Wife shall execute
20 written consent waiving confidentiality to permit full production of those
21 materials.
 - 22 ii. No later than June 30, 2026, Wife shall execute written consent authorizing
23 Safeco/Liberty Mutual to release to Husband and to U.S. Bank National
24 Association (and/or its authorized agents handling U.S. Bank Claim No.
25 1015374) the settlement agreement and release and the complete claim file(s) for
26 Safeco Policy No. OA3471026 concerning water damage to the Property,
27 including all claim handling, payment, settlement, and disbursement records,
28 notwithstanding any confidentiality provision.
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1 iii. If Wife does not timely comply with 1. and/or 2., this Court's order shall
2 constitute the required court order authorizing Safeco/Liberty Mutual to release
3 the materials described in #2 notwithstanding any confidentiality provision, and
4 Wife shall not rely on any confidentiality provision to excuse noncompliance
5 with #1.

6 d. On 6/9/2026, Wife filed a Responsive Declaration asking the Court to deny Husband's
7 request entirely. Wife states, "To the extent the SafeCo documents relate to the property
8 damage claim, Petitioner has had equal access to those documents as a party with an
9 interest in that claim and has had the ability to obtain information directly from the
10 insurance carrier, the civil action, or other available resources. There is no basis to
11 require me to produce documents that are equally available to Petitioner. To the extent
12 Petitioner's request seeks information concerning my separate personal injury claim or
13 settlement, those matters are confidential, are not relevant to the issues before this Court,
14 and are beyond the scope of these proceedings. Disclosure of insurance agreements,
15 settlement communications, settlement terms or related documents would not assist the
16 court in determining any accounting or characterization of proceeds."

17 e. On 6/12/2026, Husband filed a Reply Declaration. Husband states the Safeco lawsuit was
18 an insurance bad-faith case and not a personal injury suit. Husband states the confidential
19 settlement generated at least two January 2025 payments, including a \$140,684.79 multi-
20 payee check naming Husband, Wife, and U.S. Bank. Husband states he was not notified
21 of the settlement or dismissal and that disclosure is necessary to determine the nature of
22 the settlement proceeds, whether they were properly negotiated and distributed, and
23 whether they should have been applied to repair the property and other community
24 obligations. Husband states that Wife's assertion that the documents are equally available
25 to Husband is incorrect. Husband states Safeco has expressly stated that it will not
26 provide the release absent a court order or Wife's written consent. Wife has not provided
27 that consent. Husband reiterates his original requests and adds the following requests:

28 i. Wife to execute written consent authorizing Safeco/Liberty Mutual to release the
29 withheld records directly to me and to U.S. Bank;

1 ii. In the alternative, Wife to file and serve an itemized identification of any specific
2 material claimed to be unrelated to the water-damage claim, property-damage
3 proceeds, payment records, lender rights, or named-payee issues for the Court's
4 in-camera review before any redaction or withholding is permitted.

5 **B. Findings and Order**

- 6 1) It appears that Husband is currently requesting that the Court stay any short-sale activity through
7 6/12/2026. As 6/12/2026 has passed, the Court finds that Husband's request for a stay of
8 enforcement of the Stipulation and Order filed 1/9/2024 pending 6/12/2026, as well as his
9 evidentiary objections related to Wife's opposition to this request, is moot.
- 10 2) Husband's request that the Court reaffirm currently effective orders is denied. The Court does not
11 find it necessary to make such an additional order.
- 12 3) Wife's request for Family Code section 271 attorney's fees sanctions is denied.
- 13 4) Husband's request for the Court to set a status conference in late October 2026 is denied without
14 prejudice. As the trial has not yet occurred in the related civil action, this request is premature.
- 15 5) The Court does not find that Alameda County Case No. RG20061553 involved personal injury
16 claims by Wife. The Court finds that the insurance claim settlement proceeds directly involve a
17 community asset as well as a community property homeowner's insurance policy. Husband's
18 request for the Court to order Wife to produce the following documents as they relate to Alameda
19 County Case No. RG20061553 is hereby granted. No later than 7/15/2026, Wife shall produce to
20 Husband: the final Safeco settlement agreement and release; the request for dismissal, dismissal,
21 and related proof of service documents; any settlement statement or disbursement ledger; copies
22 of settlement checks, endorsements, and deposit records; and a verified accounting of all proceeds
23 received, deposited, transferred, withheld, or disbursed in connection with the Safeco claim and
24 related litigation.
- 25 6) No later than 7/15/2026, Wife shall sign and provide to Husband the release providing written
26 consent authorizing Safeco/Liberty Mutual to release to Husband the settlement agreement and
27 release and the complete claim file(s) for Safeco Policy No. OA3471026 concerning water
28 damage to the property, including all claim handling, payment, settlement, and disbursement
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1 records, notwithstanding any confidentiality provision. If Wife does not sign the release by
2 7/15/2026, Husband may obtain these documents directly from Safeco and / or Liberty Mutual.

3 7) Husband's request that Wife sign a release for documents to be released to U.S. Bank National
4 Association (and/or its authorized agents handling U.S. Bank Claim No. 1015374) is denied as
5 U.S. Bank National Association is not a party to this case.

6 8) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GARRISON MASON MORFIT,

Petitioner

VS.

ANNA MIEKE ORTIZ MORFIT,

Respondent

) Case Number: FDI-19-791709

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS; ADJUDICATION OF OMITTED
COMMUNITY ASSET UNDER FAMILY CODE 2556, IN THE ALTERNATIVE, PARTIAL SET-
ASIDE OF JUDGMENT UNDER FAMILY CODE 2122(A), 2122(F); BREACH OF FIDUCIARY
DUTY REMEDIES UNDER FAMILY CODE 1101(H); ATTORNEY'S FEES AND SANCTIONS
UNDER FC 1101(G), 271, AND ANY OTHER APPLICABLE AUTHORITY; REQUEST FOR ORDER
TEMPORARY EMERGENCY ORDER, CONFIRM THE STAY UNDER CCP 916 OR, IN THE
ALTERNATIVE THAT COURT CONTINUE THE MAY 5, 2026 HEARING TO EITHER TO ONE
OF THE FOLLOWING DATES : 6/2/26 OR 6/23/26

TENTATIVE RULING

**The parties are ordered to appear in person or via Zoom video. If a party chooses to appear by
Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San
Francisco Family Court set forth above.**

A. Procedural History

- 1) Petitioner Garrison Morfit (Husband) and Respondent Anna Morfit (Wife) married on 9/20/2003
and separated on 3/15/2019, for a marriage of 15 years and 5 months. The parties have four

1 children, H.M. (DOB: 7/12/2005, age 20), B.G. (DOB: 10/16/2007, age 18), E.M. (DOB:
2 11/26/2009, age 16), and G.M. (DOB: 9/12/2015, age 10).

3 2) On 3/30/2026, Wife filed a Request for Order. Wife states Husband held 15.75% GP Points in
4 ValueAct Capital general-partner enterprise as of “December 31, 2020, the stipulated valuation
5 date,” and that “this ownership interest — distinct from the capital accounts already divided
6 under the December 23, 2024 Stipulation — was never valued or adjudicated by the Court at the
7 nine-day trial in 2023 that resulted in the Statement of Decision dated September 18, 2023.” Wife
8 seeks the following orders:

9 a. Adjudication of Omitted Community Asset. A finding that Mason Morfit’s GP Points —
10 representing his ownership interest in ValueAct Holdings GP, LLC, ValueAct Holdings,
11 LP, and ValueAct Holdings II, LP (collectively, the “ValueAct GP enterprise”) —
12 constitute an omitted community property asset under Family Code § 2556, and that the
13 Court retains continuing jurisdiction to adjudicate and divide this asset.

14 b. Compelled Production of ValueAct Documents. An order compelling Mason to produce
15 all withheld ValueAct documents within 30 days, including: (a) all GP agreements and
16 amendments (including the ValueAct Holdings II LP Agreement); (b) the Houlihan
17 Lokey valuation files; (c) all historical and current employment agreements, including
18 any agreements executed on or after January 1, 2025; (d) complete K-1 packages and
19 compensation schedules; and (e) internal financial records from 2003 forward not
20 previously produced.

21 c. Characterization of GP Points as Ownership Interests. A determination that Mason’s GP
22 Points constitute ownership interests in the ValueAct GP enterprise — not mere
23 compensation or employment rights — and that such interests are community property
24 subject to division.

25 d. Valuation of the ValueAct GP Enterprise. An order for valuation of the ValueAct GP
26 enterprise as of December 31, 2020 (the stipulated valuation date), by one of the
27 following mechanisms: (a) adoption of David Gresen’s valuation (approximately \$201–
28 \$211 million for Mason’s 15.75% interest); (b) appointment of a neutral forensic expert;
29 or (c) a limited evidentiary hearing on valuation.

- 1 e. Award of Anna's Community Property Share. Calculation and award to Anna of her
2 community property share of the GP enterprise, equal to one-half of Mason's
3 proportional ownership interest, through cash equalization, asset transfer, secured
4 promissory note, or such other mechanism as the Court deems appropriate.
- 5 f. Direct Payment of GP-Derived Distributions. An order requiring direct payment to Anna
6 of her one-half share of all GP-derived distributions — including management fees,
7 performance fee allocations, K-1 income, and tail distributions — received by Mason
8 from December 31, 2020 forward until full equalization is achieved.
- 9 g. Tail Rights and Sale-Participation Rights. A determination of Anna's entitlement to one-
10 half of tail rights and sale-participation rights previously reserved by the Court, with
11 appropriate payment mechanisms ordered.
- 12 h. Alternative: Partial Set-Aside of Judgment. In the alternative, an order setting aside the
13 property-division portions of the judgment under Family Code §§ 2122(a) and 2122(f)
14 based on fraud, perjury, and disclosure violations, and ordering new valuation
15 proceedings with complete documentary evidence.
- 16 i. Enhanced Award Under Family Code § 1101(h). An award to Anna of 50 to 100 percent
17 of the ValueAct GP enterprise under Family Code § 1101(h) as a community asset
18 concealed through breach of fiduciary duty involving fraud, oppression, and malice.
- 19 j. Constructive Trust. Imposition of a constructive trust over Anna's fifty-percent
20 community interest in Mason's GP Points and all proceeds therefrom, with Mason
21 holding Anna's share as constructive trustee and required to pay distributions directly to
22 Anna as received.
- 23 k. Quarterly Accountings. An order requiring quarterly accountings and reporting by Mason
24 of all ValueAct distributions, ownership changes, and compliance with Court orders.
- 25 l. Attorney's Fees and Costs. An award to Anna of all attorney's fees and costs incurred in
26 post-judgment discovery and in bringing this motion, payable directly by Mason under
27 Family Code §§ 1101(h) and 271.
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- 1 m. Monetary Sanctions Under Family Code § 271. Imposition of monetary sanctions under
2 Family Code § 271 in an amount between \$500,000 and \$1,000,000 for conduct by
3 Mason and/or his counsel that frustrated settlement and increased litigation costs.
- 4 n. Independent Auditor / Special Master. Appointment of an independent auditor or special
5 master to monitor compliance, verify distributions, and ensure ongoing transparency
6 regarding Mason's ValueAct interests and obligations.
- 7 o. Judgment Lien. An order securing Anna's interest through a judgment lien on Mason's
8 ValueAct GP Points in the amount of her community property share.
- 9 p. Restraining Order Against Transfer. An order prohibiting Mason from transferring,
10 pledging, or encumbering his GP interests without prior Court approval and adequate
11 provision for Anna's interest.
- 12 q. Contempt Provisions. A provision that any violation of the Court's orders constitutes
13 contempt of court, subject to monetary sanctions, attorney's fees, and such other
14 remedies as the Court deems appropriate.
- 15 r. Further Relief. Such other and further relief as the Court deems just and proper to ensure
16 complete and fair division of the community estate and to remedy Mason's years of
17 concealment, material misrepresentations, and breach of fiduciary duty.
- 18 3) On 3/30/2026, Wife also filed a Notice to Present Live Testimony under Family Code section
19 217.
- 20 4) The hearing on Wife's 3/30/2026 Request for Order was originally set for 5/5/2026.
- 21 5) On 4/15/2026, Husband filed an ex parte Request for Order. Husband contends the subject matter
22 of Wife's 3/30/2026 Request for Order was "extensively litigated at trial over the course of ten
23 days of trial proceedings spanning from May 2, 2023, through June 1, 2023 (Trial Days 1 through
24 10)." Husband states, "Those proceedings resulted in a comprehensive Statement of Decision
25 issued September 18, 2023, in which this Court made express findings regarding Petitioner's
26 interest in ValueAct Capital, including a finding that 'The community does not have an
27 ownership interest in the property or assets of VAC, including any goodwill.'...The record of the
28 trial is replete with references to the GP points she now alleges were omitted assets and those
29 same GP points were the subject of Respondent's expert's opinion at trial, which opinion was

1 rejected. Respondent's own counsel's closing statement sought, amongst other things, an equal
2 division of the GP points which the Court denied...Respondent has filed a Notice of Appeal
3 (Court of Appeal Case No. A173076) challenging this Court's trial findings as they pertain to
4 ValueAct Capital, including the Court's findings regarding Petitioner's GP interest. That appeal is
5 presently pending." Husband requested that the Court continue the 5/5/2026 hearing to a date his
6 attorney is available and to order the parties to brief whether Code of Civil Procedure section 916
7 imposes a stay on the Court's ability to adjudicate Wife's 3/30/2026 Request for Order while her
8 appeal is pending.

9 6) On 4/14/2026, Wife filed a Responsive Declaration stating that the 5/5/2026 hearing date will
10 simply be a setting hearing for a long-cause hearing. Wife also argues that Code of Civil
11 Procedure section 916 does not stay her motion. Wife argues, "The pending appeal addresses one
12 issue: whether the trial court erred as a matter of law in excluding goodwill from the community's
13 interest in ValueAct. Respondent's motion addresses a different asset — the GP enterprise
14 ownership interest — under independent post-judgment statutory remedies based on documents
15 produced for the first time on February 27, 2026. These are different assets, different evidence,
16 and different legal theories. The stay does not apply." Wife also states, "Even if the Court were
17 inclined to find that any portion of the motion implicates § 916 — which Respondent disputes —
18 the proper remedy is not a blanket stay. The FC §§ 2122(a) and 1101(h) claims arise entirely from
19 post-judgment discovered evidence and are independent of the appellate record. The one-year
20 fraud SOL under § 2122(a) expires February 27, 2027. The Court should allow those claims to
21 proceed regardless of any ruling on § 916."

22 7) Per the Temporary Emergency (Ex Parte) Orders filed 4/15/2026, the Court granted Husband's
23 request to continue the 5/5/2026 hearing to 6/23/2026. The Court ordered Wife to file and serve
24 briefing on the issue of whether Code of Civil Procedure section 916 applies 16 Court days in
25 advance of 6/23/2026, Husband to file and serve briefing on this issue 9 Court days before the
26 hearing, and for Wife to file and serve a reply 5 Court days in advance of the hearing.

27 8) On 6/1/2026, Wife filed a "Brief on Inapplicability of CCP §916."
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- 1 9) On 6/4/2026, Husband filed an ex parte Request for Order asking the Court to strike Wife's
2 6/1/2026 briefing as untimely and deny Wife's motion or continue the 6/23/2026 hearing to
3 6/30/2026 and sanction Wife and / or her counsel \$10,000.
- 4 10) On 6/4/2026, Wife filed a Responsive Declaration to Husband's ex parte Request for Order
5 noting that her briefing was just one court day late and that the appropriate relief would be to
6 provide Husband additional time to file his brief. Wife requests \$10,000 in attorney's fees under
7 Family Code section 271.
- 8 11) Per the Temporary Emergency (Ex Parte) Orders filed 6/4/2026, the Court denied Husband's
9 request to strike Wife's 6/1/2026 briefing, deny Wife's motion, and continue the 6/23/2026
10 hearing. The Court noted that both parties' requests for sanctions would be heard on 6/23/2026.
- 11 12) On 6/11/2026, Husband filed a Memorandum of Points and Authorities in Support of Automatic
12 Stay along with a Request for Judicial Notice.
- 13 13) On 6/15/2026, Wife filed a Reply Brief on Inapplicability of CCP 916.

14 **B. Findings and Order**

- 15 1) **The parties are ordered to appear in person or via Zoom video. If a party chooses to appear**
16 **by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in**
17 **San Francisco Family Court set forth above.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NAIRI ARABATYAN,

Petitioner

VS.

GARY ARABATYAN,

Respondent

) Case Number: FDI-23-798069

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS. COMPLIANCE WITH ORDERS
AND FIDUCIARY DUTIES FOR BUS. VAL.

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Nairi Arabatyan (Mother) and Respondent Gary Arabatyan (Father) married on
5/20/2026 and separated on 5/18/2023, for a marriage of 17 years. The parties have four children,
Raffi (DOB: 7/4/2007, deceased), Zareh (DOB: 7/20/2009, age 16), Areni (DOB: 3/28/2012, age
14), and Gayane (DOB: 3/17/2024, age 12).
- 2) The parties stipulated to a 3-year Domestic Violence Restraining Order filed on 1/17/2024 in
related Case No. FDV-23-816883. The restraining order protects Mother and the parties' four
children. The restraining order expires on 1/24/2027.
- 3) There has been no Judgment entered in this matter to date.
- 4) On 7/24/2025, a Stipulation and Order Re: Custody, Parenting, Family Support, Arrears,
Contempt, and Motion to Compel was filed. This Stipulation and Order provides in relevant part:
 - a. For the period 8/1/2025 through 12/31/2025, Father shall pay Mother \$15,000 per month
in family support.

- b. For the period 1/1/2026 through 12/31/2026, Father shall pay Mother \$16,000 per month in family support.
- c. Father shall pay bonus support commencing 1/1/2027.
- d. The parties shall meet and confer on or before 9/15/2026 to address support going forward from 1/1/2027.
- e. The children shall continue to be enrolled in private school through June 2027. Commencing 8/1/2025, Father shall pay 100% of the school tuition for all children through June 2026. Thereafter, the parties shall share private school tuition equally through 2027.
- f. The parties shall share equally the children's uncovered healthcare costs per the instructions in Family Law Form FL-192.
- g. The parties shall share equally "the children's existing extracurricular activities, sports, and camps and new agreed-upon activities."
- h. Each party shall be responsible for and pay his and her respective attorney's fees through July 2025.
- i. The parties shall exchange global settlement proposals 10 days prior to an in-person meeting. If no agreement is reached, the parties shall request further assistance from the court for a judicial settlement conference with Judge Luna and if not available, appoint an agreed-upon mediator within 14 days of the in-person meeting. If the parties are unable to appoint an agreed-upon mediator, the mediator shall be chosen by agreement of the parties attorneys of record within 5 days thereafter and each party shall pay 50% of the mediator's fees regardless of the result of mediation. If no agreement is reached in mediation, the parties can proceed through litigation through the court.

5) Now on for hearing is Mother's Request for Order filed 2/2/2026. Mother asks the Court to order:

- a. Under the Stipulation and Order filed on 9/6/2023 in related Case No. FDV-23-816883, Father was ordered "pending the October 18, 2023 hearing and further court order, commencing September 2, 2023" to pay for "property taxes" and "ongoing medical expenses." Mother states Father failed to pay the second installment of property taxes in 2023 for the San Francisco property in the amount of \$10,855.95 plus \$4,055.79 in

1 accrued penalties / fees for a total of \$14,911.74 plus any additional accrued penalties /
2 fees. Mother states she contributed \$5,000 towards this delinquent tax bill. Mother states
3 Father should be ordered to pay \$9,911.74 (plus any additional accrued penalties / fees)
4 and to reimburse her \$5,000.

5 b. Mother states Father failed to pay for at least three installments of property taxes for the
6 Emeryville property for the period 2023 – 2025 in the amount of \$19,315 and that Father
7 should be ordered to pay for 100% of the delinquent property taxes plus accrued penalties
8 / fees. Mother also states that Father has collected all rental income for the Emeryville
9 property and Father should be ordered to reimburse her 50% of the net rental income for
10 the Emeryville property.

11 c. Mother also states that Father owes her 100% of the \$4,425 she paid for the children's
12 dental bills for 9/1/2023 – 8/15/2024.

13 d. Mother states the Stipulation and Order filed on 9/6/2023 requires Father to pay for "all
14 other expenses" not allocated to Mother. Mother states Father owes her 100% of Raffi's
15 funeral and mortuary costs which she paid in the amount of \$27,988 paid during the
16 period 9/1/2023 – 8/15/2024. Mother also states Father owes her \$7,968 for the following
17 amounts she paid during this same time period: Homenetmen Sports (\$825); Hye Camp
18 (\$ 1,913); Hye Em Yes Camp (\$ 1,000), AYC Camp (\$2,150); CYO Sports (\$900);
19 Areni's outdoor education (\$405), Zareh's Running Coach (\$450); and La Garza Sports
20 Camp (\$325).

21 e. Mother also asks the Court to order Father to reimburse her 100% of the \$8,277 she paid
22 for the San Francisco residence between 5/18/2023 – 9/1/2023: replaced water heater
23 (\$2,650); replaced broken screen door (\$628); plumbing faucet (\$340); Gutter/Roof
24 cleaning (\$600); Roof Repair (\$2,059); Broken washer replacement (\$ 1,460); Plumber
25 bathroom sink (\$350); and Gardener (\$190).

26 f. Mother also asks the Court to order Father to reimburse her for expenses she paid for
27 herself and the children between 5/18/2023 – 9/1/2023: Groceries and household supplies
28 (\$3,514); Hot lunch and school fees \$698; Zareh's School Computer (\$ 1,999); Raffi's
29 Caregiver (\$683); Kids beds (\$ 1,794) and drawers (\$ 1,580); Prescription medication (\$

172); PGAE (\$475); Water (\$99); Recology (\$94); ATILT (\$91); Gas (\$974); in the total amount of \$ 12,173.

- g. Under the Findings and Order After Hearing filed 9/24/2024, Father to reimburse Mother 50% of the children's uninsured healthcare costs which Mother paid from 8/14/2024 to present, including UCSF for Areni (\$60), children's dental bills (\$2,697), and Areni's orthodontic bill (\$7,000). This amounts to \$9,757 and Mother states Father owes her \$4,878.50.
- h. Father to reimburse Mother for the following additional expenses for the children which Mother states she paid from 8/15/2024 to the present: Areni Yosemite Field Trip (\$850); ACYO Western Diocese tournament (\$465); Homenetmen sports (\$ 1,125); Hye Camp (\$ 1,955); AYC Camp (\$2,025); CYO Sports (\$ 1,350); Areni Volleyball (\$4,152); Areni Dance (\$ 1,435); Gayane Dance (\$975), Riordan Summer Camp (\$412); Marin Rowing Summer Camp (\$ 1,080); Gayane's Outdoor Education Trip (\$430); Dance Summer Camp (\$493); Zareh's Driver Permit Fees (\$45) and Driver's Training (\$480), in the total amount of \$17,272. Mother states Father owes her \$8,636.
- i. Mother states Father owes her \$527.50 for the \$1,088.50 dental bill that she paid in January 2026 for all three children.
- j. Mother also requests that Father pay her \$401.50 for 50% of the following expenses: \$650 to add the parties' son to Mother's auto insurance for 6 months plus \$325 to repair Zareh's school laptop.
- k. Mother states that Father failed to set up automatic recurring payments for the monthly support payments as required by the 7/24/2025 Stipulation and Order and she requests an order enforcing this requirement.
- l. Father to exchange updated disclosures and provide financial information as required by paragraph 13 of the 7/24/2025 Order
- m. Father to comply with the requirement to exchange global settlement proposals under paragraph 13 of the 7/24/2025 Order
- n. The parties to meet and confer as required under paragraph 13 of the 7/24/2025 Order.

- o. The parties to set a Judicial Settlement Conference with Commissioner Luna or, if unavailable, the appointment of an agreed-upon mediator as required under paragraph 13 of the 7/24/2025 Order.
 - p. Father to advance \$100,000 for Mother's attorney's fees and costs and \$20,000 towards Mother's forensic accountant's fees/costs (to evaluate his dental practice) under Family Code sections 2030 and 2032.
 - q. Father to comply with his fiduciary duties by providing all business records and information required by Mother's forensic accountant to evaluate his dental practice.
 - r. Father to pay for the fees Mother has incurred due to his obstreperous conduct, failure to cooperate, and forcing Mother to file these requests for Father to comply with Court orders in the amount of \$14,021 as a sanction under Family Code sections 271 and 2107(c), and/or under Family Code sections 2030 and 2032.
 - 6) On 2/2/2026, Mother filed a Points and Authorities in Support of her Request for Order.
 - 7) On 2/2/2026, Mother's attorney filed a declaration in support of Mother's request for a fee award and sanctions.
 - 8) On 2/2/2026, Mother filed an Income and Expense Declaration.
 - 9) On 3/27/2026, Father filed a Responsive Declaration asking the Court to:
 - a. Deny unsupported reimbursement claims;
 - b. Deny or substantially reduce attorney fees and forensic accountant expenses;
 - c. Deny the \$14,021 meet-and-confer claim;
 - d. Modify the child support payment schedule to align with my pay periods and feasible payment methods;
 - e. Clarify responsibility for car insurance and computer expenses, or deny reimbursement;
 - f. Consider my incurred expenses for the memorial service separately from Mother's funeral arrangements, noting that I was not part of Petitioner's funeral;
 - g. Grant a brief continuance to allow me to obtain new counsel and fully respond.
 - h. Consider my financial circumstances regarding property taxes, and allow time for payment consistent with my ability to pay.
 - 10) On 3/27/2026, Father filed an Income and Expense Declaration.

11) On 4/2/2026, Mother filed a Reply Declaration reiterating her original requests and adding additional reimbursement claims related to the children's expenses.

12) On 4/2/2026, Mother's forensic accountant filed a declaration stating that she has not been provided with any of Father's business records concerning the year 2024 or any period in 2025 despite her many requests.

13) On 4/2/2026, Mother filed an updated declaration adding additional reimbursement requests related to the children's expenses, stating she received a delinquency notice for the Emeryville mortgage payment, stating Father is in violation of the ATROs because he downgraded the family's health insurance policy from a Silver to a Bronze plan, and filed a misleading Income and Expense Declaration which fails to disclose his business ownership income.

14) On 6/16/2026, Father's attorney Christine Tour-Sarkissian filed a Request to Reschedule the 6/23/2026 hearing. The Court notes that Ms. Tour-Sarkissian filed a Substitution of Attorney entering this case as Father's attorney of record on 5/6/2026. Ms. Tour-Sarkissian states that despite emails to Father's former attorney over the course of several weeks, she has not yet obtained Father's file and she is unable to substantively respond to Mother's claims before 6/23/2026.

15) On 6/16/2026, Mother filed a Responsive Declaration asking the Court to deny Father's request to continue the 6/23/2026 hearing.

B. Findings and Order

1) Father's request for a continuance of the 6/23/2026 hearing is denied.

2) As the parties did not follow through with Paragraph 13 of the Stipulation and Order filed 7/24/2025, the Court makes the following updated orders. No later than 8/30/2026, the parties shall participate in a settlement meeting in person for at least 3 hours to attempt to resolve all remaining issues. The parties shall cooperate to exchange any requested necessary financial information needed for settlement. The parties shall exchange global settlement proposals at least 10 days prior to the in-person meeting. If no agreement is reached at the in-person settlement meeting, the parties shall contact the Court and the Court will attempt to schedule a Judicial Settlement Conference with Judge Luna. If Judge Luna or another mutually agreeable judge is not available to perform the Judicial Settlement Conference, the parties shall meet and confer and

1 select a mediator and the parties shall each be responsible for 50% of the mediator's fees
2 regardless of the result of mediation. If no agreement is reached in mediation, the parties may
3 proceed through litigation through the Court.

- 4 3) The Court's jurisdiction to adjudicate all reimbursement claims set forth in Mother's 2/2/2026
5 Request for Order and related moving papers is reserved. In the event the parties are unable to
6 reach a global settlement agreement through the alternative dispute resolution process outlined
7 above, these claims shall be addressed at trial.
- 8 4) Regarding Mother's request that the parties exchange updated disclosures and provide financial
9 information, the parties shall comply with Family Code section 2102 and all statutory
10 requirements regarding Final Declarations of Disclosure.
- 11 5) Father's request that the payment deadlines for support be adjusted to match his pay periods of
12 the 5th and 15th of each month is hereby granted effective immediately.
- 13 6) The Stipulation and Order filed 7/24/2025 requires support to be paid by automatic recurring
14 payments. However, Father states Bank of America does not allow automatic transfers to
15 Mother's account and Zelle imposes a daily limit of \$3,500. The parties shall meet and confer
16 regarding a mutually acceptable payment method no later than 6/30/2026. The Court's
17 jurisdiction to make additional orders regarding this issue is reserved and shall be addressed at a
18 future hearing date of **Tuesday, 11/10/2026 at 9:00 AM in Dept. 404** in the event the parties are
19 unable to reach an agreement regarding this issue.
- 20 7) Father shall make immediate attempts to negotiate a payment plan with the County Tax Collector
21 or mortgage lender for the San Francisco and Emeryville properties. If a mutually acceptable
22 payment plan is devised, Father shall provide written documentation to Mother's attorney of the
23 plan along with documentation showing each timely payment in accordance with the payment
24 plan. If Father is unable to negotiate a payment plan by 7/31/2026, he shall bring the San
25 Francisco and Emeryville property taxes and mortgages current by 7/31/2026.
- 26 8) The Court's jurisdiction to adjudicate Mother's request for \$100,000 in attorney's fees and costs
27 and \$20,000 for Mother's forensic accountant fees and costs is reserved. Based upon the
28 Stipulation and Order filed 7/24/2025, the Court finds that the parties intended to enter settlement
29 discussions without an additional fee award. The Court sets a future hearing date of **Tuesday,**

1 **11/10/2026 at 9:00 AM in Dept. 404** to hear Mother's request for fees and costs in the event the
2 parties do not reach a global settlement. At least 20 calendar days prior to the next hearing date,
3 Mother and her attorney shall file update declarations (not to exceed 5 pages in length, not
4 including exhibits) and an updated Income and Expense Declaration. At least 10 calendar days
5 prior to the next hearing date, Father shall file an update declaration (not to exceed 5 pages in
6 length, not including exhibits) and an updated Income and Expense Declaration.

7 9) The Court finds good cause to award to Mother \$7,500 under Family Code section 271 for fees
8 and costs required for Mother to bring the instant Request for Order. The Court finds that Father
9 has engaged in conduct which has caused unnecessary delays and necessitated Mother to bring
10 the instant Request for Order. The Court finds that Father's claim that delays were caused by his
11 former attorney is not a valid defense.

12 10) Mother's attorney shall prepare the Findings and Order After Hearing.

13 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LUIS ALONSO VELASQUEZ,

Petitioner

VS.

HEIDY JASMIN ALVARDO ESPINO,

Respondent

) Case Number: FDI-24-800619

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/23/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Luis Alonso Velasquez (Father) and Heidy Jasmin Alvarado Espino (Mother) have two minor children, Loany (DOB: 9/3/2013, age 12) and Jayden (DOB: 5/31/2019, age 7).
- 2) On 11/27/2024, Father filed a Petition for Dissolution, stating the parties married on 5/22/2018 and separated on 11/9/2024 for a marriage of 6 years and 5 months.
- 3) On for hearing is Father's 2/3/2026 Request for Order seeking sole physical and sole legal custody of both children. Father states that Mother has not provided care or financial support for the children since the parties separated. Father identifies one incident when Loany texted him saying she was scared because Mother left her and Jayden alone in the children's room. Father states he has made all decisions for both children regarding their education and medical care post-separation; according to Father, he has consistently told Mother about his decisions, but Mother

never takes part in decision-making. Father additionally requests that the Court grant Mother a reasonable right of parenting time, since Mother has not expressed interest in routine visitation.

- 4) On 2/5/2026, Father filed a Petition to establish parentage over the minor children in related case FPT-26-378838.
- 5) On 4/15/2026, Mother filed a Response to Father's 2/3/2026 Request for Order denying Father's statements. She requests that (1) the Court award her sole legal and sole physical custody of both children; (2) that Father have visitation each week from Monday after school to Tuesday after school; and (3) that the Court have Tier II access to the child's school psychologist. Mother states Father prevented her from seeing the children by threatening to report her to immigration authorities, forced her out of the parties' residence, and threatened to kill her. Mother states Father showed the parties' daughter a firearm and told her that it was "meant for [Mother]." Mother states, especially during video calls, she notices the children are acting abnormal and cannot speak freely due to Father's continued surveillance and manipulation over the relationship between the children and Mother. Mother states she currently has secured stable housing and has a place for both children to stay.
- 6) On 5/1/2026, the Court entered a Judgment of Dissolution terminating the parties' marital status. The Judgment includes, in relevant part, a Marriage Settlement Agreement showing that the parties are the biological parents of the minor children.
- 7) On 6/1/2026, the parties attended mediation and were unable to reach an agreement.
- 8) On 6/11/2026, Father filed a Reply Declaration stating he does not own a firearm and has never shown any type of gun to his children. Father denies that he forced Mother out of the house or that he prevents her from seeing the children. Father states he is willing to co-parent with Mother once there is a consistent and limited visitation schedule. Father suggests that Mother have parenting time every other Saturday from 10am to 8pm and during pick-ups or drop-offs at school for the children. Since Mother is living with her boyfriend, Father states overnight visitations are not ideal at this time.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.

2) The parties are ordered to appear in person or via Zoom video at 9AM on 6/23/2026 in Department 404.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CESAR IBARRA,

Petitioner

VS.

ESMERALDA J. ALCALA,

Respondent

) Case Number: FDI-25-800880

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Cesar Ibarra (Father) and Respondent Esmeralda Alcala (Mother). Father contends the parties married on 2/14/2000 and separated on 11/1/2024, for a marriage of 24 years and 7 months. The parties have two minor children, Jacqueline (DOB: 5/21/2008) and Cesar (DOB: 10/4/2014).
- 2) On 5/21/2025, the Court adjudicated the parties' mutual requests for restraining orders and dismissed both parties' requests based on their agreement. Per the Findings and Order After Hearing filed 5/21/2025, the Court ordered Father to have visitation with the children and granted Mother temporary exclusive use of the family residence at 759 Sweeny St. in San Francisco, with each party paying one half of the mortgage payments.
- 3) On 11/24/2025, the Court heard Father's Request for Order seeking to compel the sale of the Sweeny St. residence as well as Mother's Request for Order asking the Court to set aside her default. Per the Findings and Order After Hearing filed 11/17/2025, the Court set aside Mother's default. The Court also ordered the following: "the Court finds good cause to provide Mother

1 with an opportunity to purchase Father's interest in the home. If she is unable to do so, the
2 property will be sold... As such, Mother's request for a neutral appraisal of the marital home is
3 GRANTED. The neutral appraiser shall be the Court's Evidence Code section 730 expert. By
4 11/28/25, Mother shall provide two names of proposed appraisers to Father... Father shall then
5 select one of the two options proposed by Mother by 12/5/25. The parties shall split evenly the
6 fees and costs incurred for the appraisal... The parties should work together in good faith to have
7 appraisal occur no later than 12/17/25. After the appraisal is received, Mother shall have 30 days
8 to make Father an offer to purchase Father's interest in the home... To move the sale process
9 forward in the event that Mother cannot purchase Father's interest in the marital home, Father
10 shall provide Mother with the name of three potential real estate agents no later than 11/28/25...
11 Mother shall then select one of the three options proposed by Father by 12/17/25... A review
12 hearing is set for 3/17/26... and the Court intends to evaluate progress made on the potential buy
13 out or sale of the marital home. No later than 3/6/26, each party shall submit a brief update
14 declaration explaining the status of the marital home and any specific requests they have of the
15 Court."

- 16 4) On 3/13/2026, Mother filed a Declaration wherein she attached an email from her to Father dated
17 3/12/2026 which states: "Attached are the names of 2 appraisers for your review and selection. I
18 would choose Mr. Santos. The cost of the appraisal would be split btw the two of us... Please
19 review and let me know which of the two you would like to hire..." Mother does not ask the
20 Court to make any specific orders in her declaration. According to the Proof of Service filed
21 3/13/2026, Mother's Declaration was mailed to Father on 3/13/2026.
- 22 5) At the prior 3/17/2026 hearing (per the Findings and Order After Hearing filed 4/1/2026), the
23 Court ordered the following: Father shall select the appraiser and the appraisal shall be completed
24 as soon as possible. Within 30 days of the appraisal, Mother shall inform Father if she can buy
25 him out of the property. 10 days after the 30 day period has expired, if the parties cannot agree on
26 a real estate agent, they shall each provide two names to the Court and serve the other side and
27 the Court will select the real estate agent. A review hearing was set for 6/23/2026 and the parties
28 were ordered to file and serve update declarations at least 10 days before the hearing.
29

1 6) On 6/5/2026, Father filed a Declaration. Father states that on 5/8/2026 he emailed Mother (a) a
2 Property Valuation Letter and Comparative Market Analysis prepared by licensed real estate
3 agent Sedar Juarez and (b) the names of two real estate agents. Father states Mother did not
4 respond to his email. Father asks the Court to:

- 5 a. Appoint or select a real estate agent (either Sedar Juarez or Mastafa Tinawi (both from
6 Luxe Realty Group)) to list and sell the property located at 759 Sweeny Street, San
7 Francisco, California 94134;
- 8 b. Order that the property be listed for sale within thirty (30) days;
- 9 c. Order Mother to vacate the property by a date established by the Court. Alternatively, if
10 Mother remains in exclusive possession of the property, order Mother to pay the full
11 monthly mortgage payment, utilities, and other carrying costs associated with the
12 property until it is sold or until further order of the Court;
- 13 d. Order the parties to cooperate with the listing, marketing, showing, and sale of the
14 property, including the acceptance of reasonable offers as recommended by the listing
15 agent;
- 16 e. Order Mother to reimburse Father for all mortgage payments made by Father during the
17 period of Mother's exclusive occupancy, or in such amount as the Court deems fair and
18 equitable. In the alternative, Father requests that the Court account for these mortgage
19 payments in the division of property, credits, reimbursements, or other financial
20 adjustments between the parties.
- 21 f. Grant such other and further relief as the Court deems just and proper.

22 7) Per the Proof of Service filed 6/5/2026, Father's declaration was mailed to Mother on 6/5/2026.

23 8) Mother has filed no pleadings since the prior 3/17/2026 hearing.

24 **B. Findings and Order**

- 25 1) Sedar Juarez of Luxe Realty Group is hereby appointed as the real estate agent to list and sell the
26 real property located at 759 Sweeny Street, San Francisco, California 94134.
- 27 2) Effective immediately, both parties shall be CC'd on all communications with Sedar Juarez.
- 28 3) Mother shall vacate the Sweeny Street property no later than Friday, 7/24/2026.
- 29 4) Tasks that need to be performed to list the house for sale shall begin immediately.

- 1 5) The property shall be listed for sale as soon as possible after Mother vacates the Sweeny Street
2 property.
- 3 6) The parties shall cooperate with the listing, marketing, showing, and sale of the property,
4 including the acceptance of reasonable offers as recommended by the listing agent.
- 5 7) The net sale proceeds (after all fees and taxes have been paid) shall be deposited into an interest-
6 bearing account in both parties' names. Neither party may take any amount from the net sale
7 proceeds absent a written agreement between the parties or further order of the Court.
- 8 8) The Court's jurisdiction to order reimbursement for payments towards the carrying costs of the
9 Sweeny St. property following the parties' date of separation is reserved for trial or final
10 judgment.
- 11 9) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FRANCESCO CRIPPA,

Petitioner

VS.

MICHELLE O'RIORDAN,

Respondent

) Case Number: FDI-25-802085

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR ATTORNEYS FEES AND COSTS AND TO HEAR MOTION ON OR
BEFORE JUNE 23, 2026; REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY,
VISITATION (PARENTING TIME), ATTORNEY FEES AND COSTS, ROUTINE DRUG TESTING
FOR MICHELLE O'RIORDAN

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Father's Request for Order filed 2/25/2026

A. Procedural History

- 1) Petitioner Francesco Crippa (Father) and Michelle O'Riordan (Mother) have two minor children,
Kilian (DOB 11/29/2017, age 8) and Aideen (DOB 6/30/2021, age 4).
- 2) In September 2025, the parties filed mutual requests for Domestic Violence Restraining Orders
(DVRO) in related case FDV-25-818616 and the Court issued temporary restraining orders
against both parties. On 9/24/2025, the parties reached an agreement regarding custody and
parenting time and agreed to extend the mutual temporary restraining orders until 5/6/2026.
Pursuant to the parties' agreement, the Court awarded sole legal and sole physical custody to

1 Mother and granted Father parenting time from Friday 3pm to Sunday 10am. The mutual
2 temporary restraining orders lapsed on 5/6/2026.

- 3 3) On for hearing is Father's 2/25/2026 Request for Order seeking sole legal and sole physical
4 custody of both children. Father requests the following: (1) sole legal and sole physical custody to
5 Father, or, alternatively, joint legal and joint physical custody on a week-on/week-off basis; (2)
6 Mother to go through randomized drug testing at WellnessMart, MD at 166 Geary St., #906, San
7 Francisco, CA 94108 or another facility deemed appropriate by the Court; and (3) an award of
8 \$9,000.00 in attorney's fees to Father pursuant to Family Code section 271 for necessitating the
9 Request for Order. Father additionally requests that the Court deduct this amount from Mother's
10 share of the parties' community estate. Father states Mother leveraged her temporary DVRO to
11 gain full control over the children and the marital property. Father states Mother has an admitted
12 history of recreational drug use and uses drugs while the children are under her custody, and this
13 harms the children. See 11/14/2025 Response to Father's DVRO request. Regarding his request
14 for sanctions under Family Code section 271, Father states Mother is not lucratively employed,
15 and the parties' net community estate exceeds \$1.5 million in value. No further information was
16 given regarding Mother's attempt to frustrate the litigation process.
- 17 4) On 2/25/2026, Father filed an Income and Expense Declaration.
- 18 5) On 4/29/2026, Mother filed a Preliminary Declaration regarding service of Declaration of
19 Disclosure and an Income and Expense Statement. On 5/5/2026, Mother filed an Income and
20 Expense Declaration.
- 21 6) On 5/19/2026, the parties attended mediation and were unable to reach an agreement. Father
22 requested a 2-2-5 parenting time schedule; Mother requested an additional day of parenting time
23 per week for Father.
- 24 7) On 6/9/2026, Mother filed a Responsive Declaration to Father's 2/5/2026 Request for Order.
25 Mother requests that the Court (1) not apply the Family Code section 3011(a)(4) factors against
26 either party; (2) maintain the previously agreed-upon custody schedule in mediation, or,
27 alternatively, grant Father an additional day to his parenting time and set a review hearing; (3)
28 grant Mother a right of first refusal; (4) not institute mandatory drug testing, but if the Court does
29 so, order Father to undergo to same process; and (5) deny Father's request for attorney fee award.

1 Mother states Father is recycling his allegations in his prior DVRO request in the present Request
2 for Order. According to Mother, both parties have engaged in drug use together and Father's drug
3 consumption has been greater than hers. Mother states she never consumed drugs in front of her
4 children, and any prior consumption has primarily taken place in social settings or privately
5 between the parties. Mother additionally states she has ceased drug use from 9/24/2025 after the
6 Court ordered a 75% custody timeshare to Mother and 25% timeshare to Father, and Father has
7 not presented evidence of Mother's drug use for the past year. Mother states she is not opposed to
8 a 50/50 parenting time schedule in principle. She states Father's work schedule makes it
9 impossible for him to have sole legal and sole physical custody of the children, that she offered
10 him additional parenting time, and Father did not agree with her proposal and did not propose any
11 solutions to accommodate his work schedule. Regarding Father's request for sanctions under
12 Family Code section 271, Mother states Father's rationale is unsupported because he is
13 demanding fees expended to oppose a custody order which he voluntarily signed in the past.

14 8) On 6/9/2026, Father filed an updated Income and Expense Declaration.

15 **B. Findings and Order**

- 16 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
17 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
18 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
19 children is the United States.
- 20 2) The Court finds it is in the children's best interests to maintain the current joint legal custody
21 order. In addition, the parties shall continue to follow the current parenting time schedule, with
22 the exception that Father shall have additional parenting time with the children from Tuesday
23 after school pick up to Wednesday morning school drop off. The Court will not set a review
24 hearing at this time, but the parties may file a new request for order if anything changes, or if they
25 have additional requests and are unable to reach an agreement.
- 26 3) The Court denies the parties' requests for drug testing but orders the parties not to use substances
27 around the children, during their parenting time, or in a way that affects their parenting time with
28 the children.
- 29 4) Father's request for sanctions under Family Code section 271 is denied.

1
2
3 **II. Mother's Request for Order filed 5/5/2026**
4

5 **A. Procedural History**

- 6 1) On 5/5/2026, Mother filed a Request for Order seeking \$30,000 in Family Code section 2030
7 attorney's fees and costs.
- 8 2) Mother's attorney Kelly Robbins filed a declaration on 5/5/2026 stating that Mother has incurred
9 \$10,052 in attorney's fees and costs to date. Ms. Robbins estimates that Mother will incur
10 \$30,000 or more in additional attorney's fees going forward "to prepare for and attend a hearing
11 on child custody, routine drug testing, and attorney's fees and costs, to conduct discovery as
12 needed, and to prepare or respond to a formal settlement agreement." Based on the redacted
13 billing statements attached to Ms. Robbins' declaration, it appears Ms. Robbins began
14 representing Mother in February 2026, several months after the parties' Requests for DVRO were
15 dismissed in the related FDV matter.
- 16 3) On 2/25/2026, Father filed an Income and Expense Declaration. Father is 45 years old and is the
17 Chief Technical Officer for Clearspeed. He earns \$25,000 per month. Father does not report
18 earning any bonuses. Father states that he has approximately \$32,000 in liquid savings and
19 \$481,003 in real property. Father estimates his monthly expenses to be \$16,870, which includes
20 carrying costs for the marital residence (where Mother exclusively resides) and \$3,400 per month
21 in rent (which the Court presumes is for Father's residence). The Court notes that the paystubs
22 attached to Father's Income and Expense Declaration show that he earns \$18,722 per month in
23 net income.
- 24 4) On 5/5/2026, Mother filed an Income and Expense Declaration. Mother states that she is 38 years
25 old and has a Higher National Diploma in Music, Management, and Sound. Mother states she was
26 last employed as an Operations / Account Manager for Yelp in October 2017. Mother states she is
27 currently self-employed as an independent contractor for Rover and provides pet sitting and dog
28 walking services, earning on average \$1,500 per month. Mother states she has \$12 in liquid
29 savings, \$0 in investments, and owns \$536,000 in real and personal property. Mother states that

1 she owes \$2,479 in credit card debt. Mother states that her current expenses total \$1,345 per
2 month. Mother estimates that her proposed needs are \$6,850 per month.

3 5) On 6/9/2026, Father filed a Responsive Declaration asking that the Court either deny Mother's
4 request for fees or reallocate any fee award upon division of the community estate. Father states
5 that although there are currently no support orders in place, he has been paying for the carrying
6 costs of the marital residence where Mother resides as well as her credit card expenses (which
7 totaled \$5,478 in May 2026). Father states that in May 2026, \$11,446 of his net income went to
8 Mother, leaving him with \$6,806 in net disposable income. Father states the community estate
9 has an undisputed value of \$750,000, most of which is in the form of home equity. Father asks
10 the Court to reallocate any fee award upon division of the community estate. Father further notes
11 that Mother's attorney's declaration did not explain how she arrived at the \$30,000 figure
12 requested.

13 6) On 6/9/2026, Father filed an updated Income and Expense Declaration. Father is now earning
14 \$27,308 in gross per month (\$17,394 net per month). Father states that he has \$7,060 in liquid
15 savings, \$0 in investments, and \$516,000 in real property. Father states he has paid his attorney
16 \$25,834 to date and owes \$0. Father does not report any debts.

17 7) On 6/15/2026, Mother filed a Reply Declaration. Mother notes that Father has already incurred in
18 attorney's fees nearly the \$30,000 she is requesting. Mother admits that she uses a credit card in
19 Father's name for household expenses, children's clothing, food, transportation, and some
20 discretionary spending. However, Mother also states that she has her own credit card for which
21 she pays the balance and a significant portion of her income the past year has gone towards their
22 daughter's preschool tuition which Father has not contributed to. Mother maintains there is a
23 disparity in access to funds to pay legal fees.

24 **B. Findings and Order**

25 1) The Court finds that Father is currently using his income to pay both parties' housing and person
26 expenses as well as expenses for the children. Mother, on the other hand, uses her modest income
27 to pay for both personal and children's expenses. Without further information regarding what
28 amount Father is paying towards each party's credit card expenses each month, the Court is
29 unable to ascertain whether there is a disparity in access to funds to pay legal fees. The Court also

1 notes that no facts or argument were presented regarding why Mother is currently earning less
2 than full-time minimum wage income.

- 3 2) The Court also notes that, apart from the \$7,000 in a checking account identified by Father, there
4 appears to be no other source of liquid savings from which to make a fee award.
- 5 3) No later than 6/26/2026, Father shall pay to Mother \$3,500 as and for attorney's fees and costs
6 under Family Code section 2030, which represents one-half of the \$7,000 Father has in his
7 checking account.
- 8 4) Mother's request for additional attorney's fees and costs (above and beyond \$3,500) is denied
9 without prejudice to a new Request for Order. If Mother chooses to file a new Request for Order,
10 she must present evidence regarding what amount in credit card expenses Father pays on her
11 behalf per month and why she is currently earning less than full-time minimum wage income.
12

13 **III. Preparation of Order**

14

- 15 1) Father's attorney shall prepare the Findings and Order After Hearing.
- 16 2) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CATHERINE THOMAS,

Petitioner

VS.

LIONEL SANTOYO-VELAZQUEZ,

Respondent

) Case Number: FDV-24-817779

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: MOTION TO SEAL RECORDS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On 8/19/2024, Petitioner Catherine Thomas filed a Request for Domestic Violence Restraining Order (DVRO) against Respondent Lionel Santoyo-Velazquez.
- 2) On 8/23/2024, Respondent filed a Request for DVRO against Petitioner.
- 3) The parties used to date and do not have minor children.
- 4) At the prior 9/6/2024 hearing, Respondent agreed to dismiss his Request for DVRO and the parties agreed to continue the hearing on Petitioner's Request for DVRO to 12/13/2024.
- 5) At the 12/13/2024 hearing, neither party appeared and Judge Gold dismissed Petitioner's Request for DVRO.
- 6) Now on for hearing is Respondent's Request for Order filed 1/28/2026 asking the Court to seal "all records" in this matter under California Rules of Court, rules 2.550 and 2.551. Respondent states his relationship with Petitioner was very brief. Respondent states that a Google search of his name shows this case posted on Trellis Law as the top result. Respondent states he is a financial analyst and this will limit his ability to rise into more senior or management roles.

Respondent states friends, coworkers, and colleagues have asked Respondent about this after seeing it online. Respondent states, “I believe the overriding interest exists, that it outweighs the right of public access, and that there is a substantial probability that the overriding interest will be prejudiced if the record is not sealed.”

7) Per the Proof of Service filed 5/26/2026, the Request for Order, blank Responsive Declaration, Tentative Ruling Instructions, and Findings and Order After Hearing for the 4/9/2026 hearing date were mailed to Petitioner’s attorney of record Charles Dresow on 5/26/2026.

8) Petitioner did not file a Responsive Declaration.

B. Findings and Order

- 1) Under California Rule of Court, rule 2.550(d), “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.”
- 2) The Court finds Respondent has not identified an overriding interest that overcomes the right of public access to the record, nor does the Court find Respondent has shown that a substantial probability exists that any purported overriding interest will be prejudiced if the record is not sealed. The Court denies Respondent’s request to seal records in this case.
- 3) The Court will prepare the Findings and Order After Hearing.